

		On 2/21/24, defendant FCA US LLC (FCA) sent Plaintiffs a repurchase offer letter setting forth a total repurchase amount of \$56,503.19 and states, “If this offer is acceptable, please sign and return this letter . . .” (Abeel Decl., ¶ 2, Ex. A at p. 1.) The repurchase letter is also accompanied by a release agreement that states Plaintiffs agree to release FCA from liability, other than that arising from personal injuries and medical expenses, related to the vehicle as of the date of this Agreement. (Abeel Decl., ¶ 2, Ex. A at p. 3.) Plaintiffs did not sign and return the repurchase offer or the release but informed FAC on 9/26/24 that the total buy back number was approximately \$86,000 and not the \$56,503.19 previously offered. (Abeel Decl., ¶ 3, Ex. B at p. 1.) Counsel further stated, “I need to know we are on the same page as to what the buy back amount is and for what collateral costs.” (<i>Id.</i>) Plaintiffs’ counsel followed up with FCA regarding the repurchase several more times from September 2024 through November 2024 with no response from FCA. (Abeel Decl., ¶ 4, Ex. C.) On 11/13/24, FCA responded to state it would reimburse Plaintiffs for “payments, interest, and registration” but not for “insurance, maintenance, or fuel.” (Abeel Decl., ¶ 5, Ex. C at p. 2.) Plaintiffs followed up with the current registration and Retail Installment Sales Contract on 11/15/24, at which point FCA no longer responded. (Abeel Decl., ¶ 5, Ex. C.) On 7/29/26, FCA sent an itemized offer with a release to Plaintiffs’ counsel for final settlement of this matter. (Lemalu Decl. ¶ 8, Ex. E.) FCA’s counsel was informed Plaintiffs’ counsel was out of the country and would not return to the office until 8/10/26. (Lemalu Decl. ¶ 9.) (While the Lemalu Declaration references an email chain reflecting this correspondence as Exhibit F, that exhibit is not attached.) As stated above, a settlement is enforceable under section 664.6 “only if the parties agreed to all material settlement terms.” Plaintiffs’ declaration and evidence demonstrate the parties did not agree to all material terms, including the repurchase amount, such that a settlement may be enforced under section 664.6. Plaintiffs concede no agreement was made as they state the amount owed to Plaintiffs remains at issue. (Mtn. at 4:11-12.) Defendant also demonstrates the settlement negotiations are ongoing as it sent Plaintiffs’ counsel an offer for final settlement of this matter as recently as 7/29/26 but has not yet received a response. Accordingly, the Court DENIES Plaintiffs Bradley Consulting Group and Tom Bradley-King’s Motion to Enforce Repurchase Offer and Settlement Agreement.
8	24-01375951 <i>LaSorte vs. Ghassemieh</i>	1) Motion for Sanctions 2) Motion for Terminating Sanctions The Court GRANTS the motion of Christina La Sorte for a terminating sanction against defendant Majid Gassemieh dba Ultimate Autoline

		based on defendant's failure to comply with the order of February 27, 2025 that directed him to provide verified supplemental responses to the second and fourth sets of form interrogatories. The Court strikes defendant's answer to the first amended complaint filed on March 25, 2024. (ROA 15.)
9	25-01461247 Mike Bubalo Construction CO,. Inc vs. Yorba Linda Water District	1) Motion to Seal 2) Motion to Strike - Anti SLAPP <u>Motion to Seal</u> Defendants/cross-complainant Yorba Linda Water District and Defendants Reza Afshar and Rosanne Weston's unopposed Motion to Seal Declaration of Reza Afshar and Accompanying Exhibits Pursuant to California Rules of Court, rule 2.550 is GRANTED in part. Defendants/cross-complainant Yorba Linda Water District and Defendants Reza Afshar and Rosanne Weston (collectively, Defendants) move to seal the Declaration of Reza Afshar and its exhibits. The Afshar Declaration discusses and attaches a copy of the District's Evaluation in support of Defendants' anti-SLAPP motion. "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and declaration containing facts sufficient to justify the sealing." (Cal. Rules of Court, rule 2.551, subd. (b)(1).) To grant a motion to seal, the court must expressly find that: - an overriding interest exists that overcomes the right of public access to the record; - the overriding interest supports sealing the records; - a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; - the proposed sealing is narrowly tailored; and - no less restrictive means exist to achieve the overriding interest. (Cal. Rules Ct., rule 2.550, subd. (d).) The Court finds Defendants have made sufficient showing under California Rules of Court, rule 2.550, subdivision. (d), including an overriding interest to ensure the relief sought by Plaintiffs is not defeated by publicizing the Evaluation prior to the Court or jury's ruling on Plaintiffs' Second Amended Complaint and the request is narrowly tailored to those allegations and exhibits relating to the Evaluation. Paragraphs 14 through 30 of the Declaration of Reza Afshar and its Exhibits C thorough J are ORDERED sealed. <u>Motion to Strike – Anti-SLAPP</u>